

Local Development Training Academy Act, 1993

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LOCAL DEVELOPMENT TRAINING INSTITUTE ACT, 2049

Royal Seal and Publication Date

2050.02.32

Certification and Publication Date

Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.07
2. Some Nepal Acts Amendment Act, 2072 2072.11.13
3. Some Nepal Acts Amendment Act, 2075 2075.11.19
4. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act No. 12 of the year 2050

Preamble: Whereas, it is desirable to make legal provisions for the establishment and operation of a Local Development Training Institute to provide planned training to persons involved in local bodies, with the objective of enhancing the administrative and managerial efficiency of amended by Some Nepal Acts Amendment Act, 2072.local levels related to local development work,

Therefore, this Act is enacted by Parliament in the twenty-second year of the reign of His Majesty King Birendra Bir Bikram Shah Dev. 1. Short Title and Commencement: (1) This Act may be cited as the "Local Development Training Institute Act, 2049".

(2) This Act shall commence on such date as the Government of Nepal may, by notification in the Nepal Gazette, appoint. This Act is specified to come into effect from Ashwin 4, 2050. (N.G. 2050.6.4)

2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Institute" means the Local Development Training Institute established pursuant to Section 3.

(b) "Council" means the Council formed pursuant to Section 7.

(c) "Committee" means the Management Committee formed pursuant to Section 10.

(d) "Executive Director" means the Executive Director of the Institute appointed or designated pursuant to Section 12.

(e) "Training Centre" means the Rural Development Training Centre, Urban Development Training Centre, and Women Development Training Centre.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. 3. Establishment of the Institute: A Local Development Training Institute is established to provide high-level training on administrative and managerial matters of amended by Some Nepal Acts Amendment Act,

2072.local levels related to local development work and to assist in the institutional development of those bodies at the local level. 4. Institute to be a Corporate Body: (1) The Institute shall be an autonomous and corporate body with perpetual succession.

(2) The Institute shall have a separate seal for all its business.

(3) The Institute may, like an individual, acquire, use, sell, or otherwise dispose of movable and immovable property.

(4) The Institute may, like an individual, sue or be sued in its own name. 5. Office of the Institute: (1) The head office of the Institute shall be located in Kathmandu Valley.

(2) The Institute may establish omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

7. Formation of the Council: (1) There shall be a Council formed as the apex body of the Institute, consisting of a Chairperson, Vice-Chairperson, and members as follows:-

(a) amended by Some Nepal Acts Amendment Act, 2082.Minister or Minister of State for Federal Affairs and General Administration - Chairperson

(b) amended by Some Nepal Acts Amendment Act, 2082.Assistant Minister for Federal Affairs and General Administration - Vice-Chairperson

(c) omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066

(d) Member of the National Planning Commission (looking after local development) - Member

(e) Secretary, Ministry of Finance - Member

(f) omitted by Some Nepal Acts Amendment Act, 2082.

(g) Secretary, amended by Some Nepal Acts Amendment Act, 2082.Ministry of Education, Science and Technology - Member

(h) Secretary, amended by Some Nepal Acts Amendment Act, 2082.Ministry of Physical Infrastructure and Transport - Member

(i) Secretary, amended by Some Nepal Acts Amendment Act, 2082.Ministry of Federal Affairs and General Administration - Member

(j) omitted by Some Nepal Acts Amendment Act, 2072.

(k) amended by Some Nepal Acts Amendment Act, 2082.Seven Heads nominated by the Government of Nepal, one each from the seven provinces, from among the Heads of Municipalities - Member

(l) amended by Some Nepal Acts Amendment Act, 2072.Three Chairpersons of Rural Municipalities nominated by the Government of Nepal, ensuring representation from the Himalayan, Hilly, and Terai regions of Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066. - Member

(m) Executive Director, Institute - Member-Secretary

(2) The Government of Nepal may, if it deems necessary, by notification in the Nepal Gazette, make additions, deletions, or changes to the members of the Council.

(3) The term of office of the members referred to in clauses (c), omitted by Some Nepal Acts Amendment Act, 2072. (k) and (l) of Sub-section (1) shall be two years.

(4) The Council may, if it deems necessary, invite domestic and foreign experts to participate as observers in meetings of the Council. 8. Meetings and Decisions of the Council: (1) Meetings of the Council shall be held on such date, time, and place as specified by the Chairperson of the Council.

(2) Meetings of the Council shall ordinarily be held twice a year.

(3) The Chairperson of the Council shall preside over meetings of the Council, and in their absence, the Vice-Chairperson shall preside.

In the absence of both the Chairperson and Vice-Chairperson, the members present at the meeting shall elect a member from among themselves to preside over the meeting.

(4) The presence of fifty percent of the total number of members of the Council shall constitute a quorum for a meeting.

(5) The decision of the majority shall be the decision of the meeting. If a majority cannot be reached at the meeting, the Chairperson may cast a deciding vote.

(6) Decisions of the meeting shall be certified by the Member-Secretary of the Council.

(7) Other procedures relating to meetings of the Council shall be as determined by the Council itself. 9. Powers, Duties, and Functions of the Council: In addition to those stated elsewhere in this Act, the other powers, duties, and functions of the Council shall be as follows:-

(a) To determine policies relating to training and research programs conducted by the Training Centres,

(b) To make rules for the Institute,

(c) To approve plans and programs of the Institute,

(d) To review and evaluate the progress of the annual program of the Institute and approve the annual budget,

(e) To give necessary directions to the Executive Director and the Committee,

(f) To create necessary posts for employees for the Institute,

(g) To appoint necessary employees for the Institute,

(h) To carry out other functions as prescribed. 10. Repealed by Some Nepal Acts Amendment Act, 2075. 11. Repealed by Some Nepal Acts Amendment Act, 2075. 12. Provisions Relating to Employees of the Institute:

(1) The Institute shall have the following categories of employees:-

(a) Administrative,

(b) Teaching and Research.

(2) There shall be an Executive Director as the head of the Institute. The Government of Nepal may appoint or designate a person having special experience in training-related work to the post of Executive Director. Their term of office shall be five years, and the Government of Nepal may, if it wishes, extend their term of office for a further maximum period of two years.

(3) The Institute shall have other employees as required. Added by Some Nepal Acts Amendment Act, 2075.(3a) For the operation of the work of the Institute, the Government of Nepal may assign civil servants on deputation for a maximum period of one year.

(4) Provisions relating to the remuneration, terms of service, and facilities of the Executive Director and other employees of the Institute shall be as prescribed. 13.

Powers, Duties, and Functions of the Executive Director: (1) The powers, duties, and functions of the Executive Director shall be as follows:- (a) To implement and cause to implement the decisions and directions of the Council, (b) To submit the long-term plan, annual program, and budget of the Institute to the Council for approval, (c) To cause the implementation of plans and annual programs approved by the Council, (d) To release the approved budget amount for the Training Centres. (2) Other powers, duties, and functions of the Executive Director shall be as prescribed. 14. Fund of the Institute: (1) There shall be a separate Fund of the Institute. (2) The Fund referred to in Sub-section (1) shall contain the following amounts:- (a) Grant amounts received from the Government of Nepal, (b) Grant amounts received from any foreign government, international organization, institution, or foreign agency, (c) Amounts received as loans, donations, assistance, grants, or charitable contributions from any person, institution, or government, (d) omitted by Some Nepal Acts Amendment Act, 2072 Grant amounts received from municipalities, (e) Amounts received from any other source. (3) The Institute shall obtain prior approval from the Government of Nepal before receiving grant amounts from any foreign government, international organization, institution, or foreign agency. (4) Amounts received for a specific program or work must be spent only on that program or work. (5) All expenses to be borne by the Institute shall be met from the Fund referred to in Sub-section (2). (6) The amount earned by a relevant Training Centre shall be released to that Training Centre as prescribed. (7) All amounts received by the Institute shall be deposited by opening an account in the name of the Institute in any bank within Nepal omitted by Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (8) The Fund and accounts of the Institute shall be operated by the joint signature of the Executive Director and the Chief of Accounts. 15. Accounts and Audit: (1) The accounts of income and expenditure of the Institute shall be maintained in the manner adopted by the Government of Nepal. (2) The audit of the Institute shall be conducted by the Auditor General or a registered auditor designated by them. (3) The Government of Nepal may, if it wishes, inspect or cause to be inspected the account books, documents, cash, and inventory of the Institute at any time. 16. Annual Report: The Executive Director shall submit the annual report of the Institute to the Council within three months from the date of expiry of each fiscal year. 17.

Delegation of Powers: (1) The Council may delegate all or some of the powers vested in it under this Act or rules made under this Act to any member of the Council, Committee, Executive Director, or any authorized employee, as necessary. (2) The Executive Director may delegate all or some of the powers vested in them under this Act or rules made under this Act to any employee of the Institute. 18. Publication of Report: A report on the activities of the Institute shall be published publicly each year. 19. Liaison with the Government of Nepal: The Institute shall maintain liaison with the Government of Nepal through the amended by Some Nepal Acts Amendment Act, 2072.Ministry of Federal Affairs and General Administration. 20. Power to Make Rules: For the fulfillment of the objectives of this Act, the Council may make necessary rules. Rules made in this manner must be approved by the Government of Nepal. Added by Some Nepal Acts Amendment Act, 2075.20a. Province Government may make Rules: (1) Subject to this Act, the Province Government may make necessary rules for the operation of Training Centres transferred to the Province Government. (2) Rules made by the Province Government pursuant to Sub-section (1) shall come into effect only after publication in the Province Gazette. Added by Some Nepal Acts Amendment Act, 2075.20b. Interim

Management: Employees working in Training Centres transferred to the Province Government pursuant to Sub-section (3) of Section 5 may be assigned to work in the relevant province on deputation. 21. Saving: (1) The work and proceedings conducted by the Local Development Training Centres, Local and Urban Development Training Centres, Women Development Training Centres, and Training Material Production Centre under the Government of Nepal, Ministry of Local Development, shall be deemed to have been done under this Act. (2) All rights and liabilities of the Centres referred to in Sub-section (1) shall vest in the Institute. (3) Employees working in the Centres referred to in Sub-section (1) shall be transferred to the Institute.